

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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STEPHANIE STRADFORD,

Plaintiff,

-against-

DETECTIVE THOMAS WOODS, Tax No. 923384 and
SERGEANT JOSEPH ORECCHIO, Tax No. 933124,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 16, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE THOMAS WOODS, Tax No. 923384, Narcotics Borough Bronx, One
Police Plaza, Room 1100, New York, NY 10038
SERGEANT JOSEPH ORECCHIO, Tax No. 933124, Narcotics Borough Bronx, One
Police Plaza, Room 1100, New York, NY 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, STEPHANIE STRADFORD, by her attorneys, Jacobs & Hazan, LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On May 7, 2014 at approximately 6:00 a.m., plaintiff, Stephanie Stradford, while lawfully inside of her apartment located at 2537 Decatur Avenue, Apt. 11, Bronx, New York, was subjected to an unlawful search, detention, false imprisonment and false arrest by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied a right to a fair trial. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied his right to a fair trial, and maliciously prosecuted in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. On the date of the subject incident, plaintiff STEPHANIE STRADFORD was a resident of the State of New York.

3. DETECTIVE THOMAS WOODS, Tax No. 923384, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE THOMAS WOODS, Tax No. 923384, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

5. DETECTIVE THOMAS WOODS, Tax No. 923384, is being sued in his individual and official capacity.

6. SERGEANT JOSEPH ORECCHIO, Tax No. 933124, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSEPH ORECCHIO, Tax No. 933124, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

8. SERGEANT JOSEPH ORECCHIO, Tax No. 933124, is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On May 7, 2014, at approximately 6:00 a.m., plaintiff was lawfully inside of her apartment, located at 2537 Decatur Avenue, Apt. 11, Bronx, New York.

15. The defendant police officers then unlawfully entered and searched the individuals present at 2537 Decatur Avenue, Apt. 11, Bronx, New York, without reasonable suspicion, probable cause, or any legal justification.

16. At no time were any illegal drugs, guns, or contraband found in plaintiff's apartment, or on plaintiff's person, or in plaintiff's possession, custody, or control.

17. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

18. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

19. Nevertheless, handcuffed plaintiff, and was falsely arrested by the defendants and transported to the 52nd precinct for arrest processing.

20. When plaintiff arrived at the 52nd Precinct, she was photographed, fingerprinted, searched, and then placed in a holding cell by the defendants.

21. At no time in the 52nd Precinct did defendants recover any drugs, contraband, or any other illegal paraphernalia on plaintiff.

22. While at the precinct, plaintiff specifically told the defendant police officers that she must take her diabetes medication, however the defendant police officers refused to allow her to take her necessary medication, nor would they allow her to go to the hospital.

23. After several hours in custody at the 52nd precinct, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

24. Thereafter, the defendant police officers provided the Bronx County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

25. Based upon the false, misleading and/or incomplete information provided to the Bronx District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

26. After being unlawfully detained for approximately 30 hours, plaintiff was arraigned in Bronx County Criminal Court on May 8, 2014 at approximately 12:00 p.m. and charged with crimes that she did not commit.

27. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance in the 7th Degree.

28. Thereafter, plaintiff appeared in Court on approximately 3 occasions before all charges were dismissed on December 8, 2014.

29. As a result of the unlawful search of plaintiff's apartment, plaintiff's property was damaged.

30. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

31. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denial of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

35. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

42. Defendants lacked probable cause to search plaintiff and her apartment.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Malicious Prosecution

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants commenced and continued a criminal proceeding against plaintiff.

47. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

48. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

49. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

54. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

55. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

56. In withholding/creating false evidence against plaintiff Stephanie Stradford and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, plaintiff Stephanie Stradford, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

62. Defendants failed to intervene to prevent the unlawful conduct described herein.

63. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

65. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Stephanie Stradford demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 16, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: DETECTIVE THOMAS WOODS, Tax No. 923384, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038
SERGEANT JOSEPH ORECCHIO, Tax No. 933124, Narcotics Borough Bronx, One Police Plaza, Room 1100, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 16, 2017

/s/
STUART E. JACOBS